

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MANOR MHC HOLDINGS, LLC,

Plaintiff,

vs.

**AUDREY LEE ZINK, DAWN BELL, THOMAS BELL and ANY UNKNOWN PARTY(s) IN
POSSESSION,**

Defendants.

Case No.: 2026-CC-002498AX

DEFENDANTS' PRO SE ANSWER, AFFIRMATIVE DEFENSES, MOTION TO DETERMINE RENT, AND DEMAND FOR JURY TRIAL

Defendants, AUDREY LEE ZINK, DAWN BELL, and TOMI BELL (improperly designated as "ANY UNKNOWN PARTY(s) IN POSSESSION"), appearing Pro Se, hereby file this Answer, Affirmative Defenses, Motion to Determine Rent, and Demand for Jury Trial in response to the Plaintiff's Complaint Seeking Possession and Damages.

ANSWER

1. **Admitted in part, Denied in part.** Defendants admit that the mobile home is located at 900 9th Avenue East, Lot #203, Palmetto, Manatee County, Florida 34221. Defendants assert that the mobile home was inherited by three sisters (Audrey, Dawn, and Tomi) after their father, Thomas Raymond Bell, passed away on August 13, 2014. Audrey Lee Zink has resided there for 16 years, Tomi Bell for 9 years, and Dawn Bell no longer resides in the property, having relocated to Georgia approximately three years ago.
2. **Denied.** Defendants deny that they are in ongoing violation of Rule 3 and Rule 6 of the Colonial Mobile Manor Rules and Regulations.
3. **Denied.** Defendants strictly deny the allegations in Count II of the Plaintiff's Complaint that rent for the months of November and December 2025 went unpaid.
4. **Admitted.** Defendants admit that rent for the lot is \$821.00 per month.
5. **Denied.** Defendants deny all other allegations not expressly admitted herein.

AFFIRMATIVE DEFENSES

First Affirmative Defense: Walver by Acceptance of Rent (Florida Statute § 723.061) The Plaintiff's Complaint alleges that rent for November and December 2025, totaling \$1,642.00, remains unpaid. This is factually false. Plaintiff accepted, processed, and cashed rent payments from the Defendants after issuing their October 30, 2025 Notice of Violation and their November 14, 2025 Notice of Termination.

- Defendants made an \$821.00 payment via Chime direct debit on November 4, 2025, as evidenced by the attached "November_lot_203.jpg" incorporated herein as Exhibit A.
- Defendants made a subsequent \$821.00 payment via Wells Fargo check (#102), which

was cashed by management on December 4, 2025, as evidenced by the attached "December_lot_203.jpg" incorporated herein as Exhibit A.

Under Florida Statute § 723.061, a park owner waives the right to evict a mobile home owner or tenant for a rule violation if the park owner accepts rent with knowledge of the noncompliance. By accepting and cashing rent for November and December 2025, Plaintiff waived its right to proceed with this eviction action based on the prior notices.

Second Affirmative Defense: Cure of Violation (Mootness) Plaintiff alleges a violation of Rule 6 for permitting an unregistered dog on the premises. The dog in question has been deceased since December 2025. Therefore, the alleged pet violation has been entirely cured, rendering that portion of the Plaintiff's complaint moot.

MOTION TO DETERMINE RENT

Pursuant to Florida Statutes, Defendants hereby move this Honorable Court to determine the amount of rent to be deposited into the Court Registry, and state as follows:

1. Plaintiff's Complaint demands \$1,642.00 for November and December 2025.
2. Defendants explicitly dispute the \$1,642.00 demanded for November and December 2025. As proven by Exhibit A ("November_lot_203.jpg" and "December_lot_203.jpg"), these months were already paid in full and accepted by the Plaintiff.
3. Defendants acknowledge that the undisputed rent for the months of January 2026 through June 2026 is \$4,375.00.
4. The estimated Manatee County Clerk registry fee (calculated at 3% of the first \$500.00 and 1.5% of the remaining balance) is \$71.63.
5. Accordingly, the total undisputed amount to be deposited into the Court Registry is **\$4,446.63**. Defendants are prepared to deposit this undisputed amount upon the Court's order or within the statutory timeframe.

DEMAND FOR JURY TRIAL

Defendants hereby demand a trial by jury on all issues so triable, specifically regarding the factual disputes surrounding the Plaintiff's waiver of the alleged rule violations by their acceptance of rent for November and December 2025.

Defendants acknowledge and understand that demanding a jury trial does not pause, toll, or waive the strict 5-day statutory deadline to deposit the undisputed rent into the Court Registry.

WHEREFORE, Defendants respectfully request that this Honorable Court: A. Grant the Motion to Determine Rent, finding that November and December 2025 rent was paid and accepted; B. Dismiss the Plaintiff's Complaint for Possession and Damages due to Waiver by Acceptance of Rent; C. Grant a trial by jury; and D. Award any further relief this Court deems just and proper. Respectfully submitted this 15 day of June, 2026.

Signature: _____ Date: _____

Audrey Lee Zink, Defendant Pro Se

900 9th Avenue East, Lot #203

Palmetto, Florida 34221

Signature: Audrey Zink Date: 6-15-2026

Dawn Bell no longer resides at the address

Tomi Bell, Defendant Pro Se

900 9th Avenue East, Lot #203

Palmetto, Florida 34221

Tomi Bell

6-15-2026

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished via U.S. Mail and/or Electronic Mail on this 15 day of June, 2026, to:

William C. Price, III, Esquire

WILLIAM C. PRICE, III, P.A. 522 Twelfth Street West Bradenton, Florida 34205

Pleadings@wcpricelaw.com Attorney for the Plaintiff

Signature: Audrey Zink Date: 6-15-2026

Audrey Lee Zink

EXHIBIT A

RECEIVED FROM BANK OF
 AMERICAN SAVINGS
 FOR DEPOSIT ONLY
 JPMORGAN CHASE BANK, N.A.

**BEST IMAGE
AVAILABLE**

11:40



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chime

844-344-8884

Andrey Zirk
4706 Venetian Blvd NE, Lot 208
Boca Raton, FL 33493

Checking Account Statement

Account number
273,546,704

Statement period
November 01, 2025 - November 30, 2025
Current balance as of November 30, 2025

Summary

Beginning balance on November 01, 2025	\$88.82
Deposits	\$0.00
ATM Withdrawals	\$0.00
Purchases	-\$253.94
Adjustments	\$0.00
Transfers	\$804.80
Rounded Up Transfers	\$0.00
Fees	\$0.00
SpotMe Tips	\$0.00
Ending balance on November 30, 2025	\$134.88

Transactions

TRANSACTION DATE	DESCRIPTION	TYPE	AMOUNT	NET AMOUNT	SETTLEMENT DATE
11/24/2025	Circle K CIRCLE K 4706B PALMETTO BLVD	Purchase	-\$15.93	-\$15.93	11/17/2025
11/13/2025	Transfer to Tomi B.	Transfer	-\$28.00	-\$28.00	11/13/2025
11/10/2025	Circle K CIRCLE K 4400W CIRCLE K 4400W PALMETTO BLVD	Purchase	-\$8.21	-\$8.21	11/10/2025
11/09/2025	Circle K CIRCLE K 4400W CIRCLE K 4400W PALMETTO BLVD	Purchase	-\$7.80	-\$7.80	11/09/2025
11/04/2025	Bankt Debit: PT Kingsley Mailing, Web . PT KINGSLEY MAILING WEB SITE	Direct Debit	-\$621.89	-\$621.89	11/04/2025
11/02/2025	Transfer from Tomi B.	Transfer	\$621.89	\$621.89	11/02/2025

Yearly Surcharge

SpotMe Tip \$0.00

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